

Kunal Narula & Anr vs State & Anr on 17 December, 2020

Author: Anu Malhotra

Bench: Anu Malhotra

\$~ 47 and 48

* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ Crl.M.C. No. 374/2020

KUNAL NARULA & ANR.
Through:

..... Petitioners
Ms.Charu Bhardwaj, Advocate with
petitioners in person.

versus

STATE & ANR..

.. Responden
Through: Mr.Sanjeev Sabharwal, APP for S
With SI Mahabir Prasad and SI A
Kumar
Mr.Vibhor Verdhan, Adv for R-2
with R-2 in person.

+ Crl.M.C. No. 383/2020

HEMANT SURI & ORS.
Through:

..... Petitioners
Ms.Charu Bhardwaj, Advocate with
petitioners in person.

versus

STATE & ANR..

.. Responden
Through: Mr.Sanjeev Sabharwal, APP for S
With SI Mahabir Prasad and SI A
Kumar
Mr.Vibhor Verdhan, Adv for R-2
with R-2 in person.

CORAM:
HON'BLE MS. JUSTICE ANU MALHOTRA
ORDER

% 17.12.2020 (Through Video Conferencing) Vide the present petitions, the petitioners i.e. petitioners No.1 Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

and 2, namely Kunal Narula and Hemant Suri in Crl.M.C. No.374/2020 in relation to FIR No. 382/2016, Police Station Dabri registered under Sections 324/354/354B/506/34, of the Indian Penal Code,1860 and the petitioners No. 1 to 3, namely, Hemant Suri, Vijay Kumar Suri and Smt. Poonam Suri in Crl.M.C. No. 383/2020 qua FIR No. 523/2016 under Sections 498A/406/34 of the

Indian Penal Code seek the quashing of the FIRs in question.

The respondent No.2 Ms.Neha Suri in both the petitions is the complainant of both the FIRs in question.

Ms.Neha Suri has since been divorced from Hemant Suri (petitioner No.2 in Crl M.C. 374/2020 and Petitioner no.1 in Crl.M.C. No. 383/2020) vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 vide decree dated 26.9.2019 in HMA 2782/2019 of the Court of the Judge Family Courts, Dwarka Courts, New Delhi and the respondent No.2 has identified all the petitioners. The respondent No.2 has been identified by the Investigating Officer of FIR No. 382/2016, Police Station Dabri registered under Sections 324/354/354B/506/34, of the Indian Penal Code,1860 (Crl.M.C. No. 374/2020) and also by her counsel Mr.Vibhor Verdhhan. The respondent No.2 has identified the petitioners of both the petitions.

The Investigating Officer of FIR No. 382/2016, Police Station Dabri registered under Sections 324/354/354B/506/34,of the Indian Penal Code,1860 has also identified the petitioners of Crl.M.C. No. 374/2020.

The petitioners of both the petitions and the respondent No.2 Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

are stated to have arrived at a settlement vide a settlement deed dated 7.6.2019 pursuant to which the total settled sum of Rs.16,00,000/- had been agreed to be paid to the respondent No.2, the complainant of the FIRs by the petitioners of which a sum of Rs.6,00,000/- is stated to have been received by her previously and the balance sum of Rs.10,00,000/- has now been handed over to her through her brother Mr.Kamal Kakkar vide a demand draft bearing No. 239550 dated 19.9.2020 drawn on Kotak Mahindra Bank in favour of the respondent No.2 in the name of Neha Suri and she has stated in reply to a specific Court query that she has an account in that name. It has been stated by the respondent No.2 in replies to specific Court queries that she does not oppose the prayer made by the petitioners seeking the quashing of the FIR as she wants to move in her life and wants to pursue her career and has a seven year old child. She has further stated that she has done MBA and works in a real estate company and that she has understood the implications of the statement made by her and does not need to think again.

In view of the settlement arrived at between the parties, on behalf of the State there is now thus no opposition in view of the deposition of the respondent No.2 qua which there appears no reason to disbelieve the same that she has so deposed voluntarily of her own accord without any duress, pressure or coercion from any quarter. Thus, it is considered appropriate to put a quietus to the litigation between the parties qua the FIRs in question and for the maintenance of peace and harmony between them in view of the observations in the verdict of the Hon'ble Supreme Court in Gian Singh vs. State of Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

Punjab & Another, (2012) 10 SCC 303, to the effect : -

"58..... No doubt, crimes are acts which have harmful effect on the public and consist in wrongdoing that seriously endangers and threatens the well-being of the society and it is not safe to leave the crime-doer only because he and the victim have settled the dispute amicably or that the victim has been paid compensation, yet certain crimes have been made compoundable in law, with or without the permission of the court. In respect of serious offences like murder, rape, dacoity, etc., or other offences of mental depravity under IPC or offences of moral turpitude under special statutes, like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity, the settlement between the offender and the victim can have no legal sanction at all. However, certain offences which overwhelmingly and predominantly bear civil flavour having arisen out of civil, mercantile, commercial, financial, partnership or such like transactions or the offences arising out of matrimony, particularly relating to dowry, etc. or the family dispute, where the wrong is basically to the victim and the offender and the victim have settled all disputes between them amicably, irrespective of the fact that such offences have not been made compoundable, the High Court may within the framework of its inherent power, quash the criminal proceeding or criminal complaint or FIR if it is satisfied that on the face of such settlement, there is hardly any likelihood of the offender being convicted and by not quashing the criminal proceedings, justice shall be casualty and ends of justice shall be defeated. The above list is illustrative and not exhaustive. Each case will depend on its own facts and no hard-and-fast category can be prescribed." [Refer to B.S. Joshi, (2003) 4 SCC 675; Nikhil Merchant, (2008) 9 SCC 677 and Manoj Sharma, (2008) 16 SCC 1.]"

Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

and in view of the verdict of the Hon'ble Supreme Court in Jitendra Raghuvanshi & Ors. Vs. Babita Raghuvanshi & Anr. (2013) 4 SCC 58, to the effect : -

"15. In our view, it is the duty of the courts to encourage genuine settlements of matrimonial disputes, particularly, when the same are on considerable increase. Even if the offences are non- compoundable, if they relate to matrimonial disputes and the Court is satisfied that the parties have settled the same amicably and without any pressure, we hold that for the purpose of securing ends of justice, Section 320 of the Code would not be a bar to the exercise of power of quashing of FIR, complaint or the subsequent criminal proceedings.

16. There has been an outburst of matrimonial disputes in recent times. They institution of marriage occupies an important place and it has an important role to play in the society. Therefore, every effort should be made in the interest of the individuals in order to enable them to settle down in life and live peacefully. If the

parties ponder over their defaults and terminate their disputes amicably by mutual agreement instead of fighting it out in a court of law, in order to do complete justice in the matrimonial matters, the courts should be less hesitant in exercising their extraordinary jurisdiction. It is trite to state that the power under Section 482 should be exercised sparingly and with circumspection only when the Court is convinced, on the basis of material on record, that allowing the proceedings to continue would be an abuse of process of court or that the ends of justice require that the proceedings ought to be quashed...."

(emphasis supplied), FIR No. 382/2016, Police Station Dabri registered under Sections 324/354/354B/506/34, of the Indian Penal Code, 1860 qua the Signature Not Verified Digitally Signed By: SUMIT GHAI Signing Date: 22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

petitioners No.1 and 2 namely Kunal Narula and Hemant Suri and FIR No. 523/2016 under Sections 498A/406/34 of the Indian Penal Code qua the petitioners No. 1 to 3, namely, Hemant Suri, Vijay Kumar Suri and Smt. Poonam Suri, and all consequential proceedings emanating therefrom are thus quashed.

The petition is disposed of.

However, it is made expressly clear that vide clause 1 of the settlement deed dated 7.6.2019 between Hemant Suri and Neha Suri it has been agreed to the effect:

"That party of the first part/husband will pay Rs.16,00,000/- (Rupees Sixteen Lakhs Only) to the party of the second part in lieu of full and final settlement regarding alimony, maintenance (Past, Present & Future) and stridhan of the second part/wife and maintenance (Past, Present & Future) of minor child namely Master Aadvik."

whereby the respondent No.2 i.e., Neha Suri, presently now Neha Kakkar has agreed to the effect that the amount of Rs.16,00,000/- was in lieu of full and final settlement regarding alimony maintenance (Past, Present & Future) and stridhan and maintenance (Past, Present & Future) of the minor child namely Master Aadvik who is in her custody as per the settlement deed.

It is apparent that in terms of the verdict of the Hon'ble Supreme Court in Ganesh V. Sudhir Kumar Shrivastava & Ors.; Civil Appeal Nos. 4031-4032/2019 arising out of SLP(C) Nos. 32868-32869/2018, a verdict dated 22.4.2019 and adhered to by this Court in Rakesh Jain & Ors. V. State and Anr. in Crl.M.C. No. 2935/2019. Signature Not Verified Digitally Signed By: SUMIT GHAI Signing Date: 22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

the rights of the minor child cannot be given up by the mother. In view thereof the quashing of the FIRs in question would not amount to any embargo on the minor child born of the wedlock between the respondent No.2 and Hemant Suri seeking his claims against the petitioners in Crl.M.C. Nos. 383/2020 qua maintenance or otherwise in accordance with law.

ANU MALHOTRA, J DECEMBER 17, 2020/SV Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

IN THE HIGH COURT OF DELHI AT NEW DELHI KUNAL NARULA & ORS. V. STATE AND ANR.

17.12.2020 CW-1 SI ANIL KUMAR PS MOHAN GARDEN I identify the petitioners No.1 and 2 present in the Court today through Video Conferencing as being the two accused arrayed in the FIR No. 382/2016, Police Station Dabri registered under Sections 324/354/354B/506/34, of the Indian Penal Code, 1860. Apart from these two accused there is no other person arrayed as accused in the FIR. I also identify the respondent No.2/complainant present in the Court today through Video Conferencing in the name of Neha Kakkar as being the complainant of the FIR in question.

ANU MALHOTRA, J RO & AC 17.12.2020 Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

IN THE HIGH COURT OF DELHI AT NEW DELHI HEMANT SURI & ORS. V. STATE AND ANR.

17.12.2020 CW-1 ADVOCATE VIBHOR VERDHAN (Enrollment No. D-2725/2009) I am the advocate for the respondent No.2 Ms. Neha Kakkar in Crl.M.C.No. 383/2020. I identify the respondent No.2 present in the Court today through Video Conferencing as being the complainant of the FIR No. 523/2016 under Sections 498A/406/34 of the Indian Penal Code, 1860, Police Station Khayala.

ANU MALHOTRA, J RO & AC 17.12.2020 Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

IN THE HIGH COURT OF DELHI AT NEW DELHI KUNAL NARULA & ORS. V. STATE AND ANR.

And HEMANT SURI & ORS. V. STATE AND ANR.

17.12.2020 CW-2 NEHA KAKKAR @ NEHA SURI D/O SH. SURESH KUMAR KAKKAR AGED 32 YEARS R/O B1/155 VISHNU GARDEN, KHYALA, NEAR SUNIL DAIRY On S.A. I identify the petitioners namely, Hemant Suri, Vijay Kumar Suri, Smt. Poonam Suri and Kunal Narula in Crl.M.C. No. 383/2020 as well as Crl.M.C. No. 374/2020.

The settlement deed dated 7.6.2019 placed on record in both the petitions, i.e., Crl.M.C. No. 374/2020 and 383/2020 has been signed by me voluntarily of my own accord without any duress, pressure or coercion from any quarter.

The marriage between me and Hemant Suri (the petitioner No.1 in Crl.M.C.No. 383/2020 and petitioner No.2 in Crl.M.C. No. 374/2020) has since been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 vide decree dated 26.9.2019 in HMA 2782/2019 of the Court of the Judge Family Courts, Dwarka Courts.

In terms of the settlement a total settled sum of Rs. 16,00,000/- was to be paid to me by the petitioners of which I have received a sum of Rs.6,00,000 and a Demand Draft for a sum of Rs.10,00,000/- Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.

has been handed over today to my brother Mr.Kamal Kakkar by Mr.Hemant Suri (the petitioner No.1 in Crl.M.C.No. 383/2020 and petitioner No.2 in Crl.M.C. No. 374/2020) bearing No.239550 dated 19.9.2020 drawn on Kotak Mahindra Bank in the name of Neha Suri (copy of the said demand draft is now submitted on record). Now there are no claims of mine left against the petitioners.

In view thereof, I do not now oppose the prayer made by the petitioners No.1 to 3 in Crl.M.C. No. 383/2020 seeking quashing of FIR No. 523/2016, Police Station Khayala registered under Sections 498-A/406/34, of the Indian Penal Code,1860 nor do I oppose the prayer made by petitioners No.1 and 2 in Crl.M.C. No. 374/2020 seeking quashing of the FIR No. 382/2016, Police Station Dabri registered under Sections 324/354/354B/506/34, of the Indian Penal Code,1860. I want to move on in my life and have a 7 year old child, Master Advik, who is in my custody, and want to continue in my career.

I have done my MBA and I am working in a Real Estate Company. I have understood the implications of making my statement and have made my statement voluntarily of my own accord without any duress, pressure or coercion from any quarter and do not want to think again.

ANU MALHOTRA, J RO & AC/17.12.2020.

Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.12.2020 20:38:10 This file is digitally signed by PS to HMJ ANU MALHOTRA.